

23PSCV03689 23PSCV03689

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Morales v. Cuevas, et al., Case No. 23PSCV03689 (Consolidated with Case No. 23PSCV03846)

ORDER ON MOTION
TO SET ASIDE DISMISSAL

Plaintiff Kelsie Ramona

Valenzuela's Motion to Set Aside Dismissal is GRANTED. The Court orders Case No. 23PSCV03846 restored to its active case list.

Background

Case

No. 23PSCV03689

Plaintiff

Andrew Morales ("Morales") allegedly sustained injuries and damages in a December 16, 2021 motor vehicle collision on the 60 freeway.

On November 29, 2023, Morales filed a complaint, asserting causes of action against Roberto Cuevas ("Cuevas"), FBD Vanguard Construction, Inc. ("FBD") and Does 1-25 for: (1) Motor Vehicle and (2) General Negligence.

On May 31, 2024, the Court related Case Nos. 23PSCV03689 and 23PSCV03846; Case No. 23PSCV03689 was designated as the lead case.

On February 10, 2025, the Court consolidated Case Nos. 23PSCV03689 and 23PSCV03846; Case No. 23PSCV03689 was designated as the lead case.

On March 18, 2025, Morales filed a dismissal of the “[e]ntire action of all parties and all causes of action,” with prejudice.

Case
No. 23PSCV03846

Plaintiff Kelsie Ramona Valenzuela (“Valenzuela”) allegedly sustained injuries and damages in a December 16, 2021 motor vehicle collision on the 60 freeway.

On December 12, 2023, Valenzuela filed a complaint, asserting causes of action against Cuevas, FBD and Does 1-50 for: (1) Motor Vehicle and (2) General Negligence.

On May 31, 2024, the Court related Case Nos. 23PSCV03689 and 23PSCV03846; Case No. 23PSCV03689 was designated as the lead case.

On February 10, 2025, the Court consolidated Case Nos. 23PSCV03689 and 23PSCV03846; Case No. 23PSCV03689 was designated as the lead case.

Legal Standard

“The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to

the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . ." (Code Civ. Proc., § 473, subd. (b).)

Discussion

Valenzuela

moves the Court, per Code of Civil Procedure section 473 and the Court's inherent equitable authority, for an order setting aside the dismissal of her complaint entered on March 18, 2025, on the basis that the dismissal of her complaint was wholly unauthorized because it was filed by Attorney Vick Petrosian ("Petrosian"), who had formally substituted out as her counsel before her complaint was filed and thus had no authority to act on her behalf. In the alternative, Valenzuela asserts that the dismissal is voidable under Code of Civil Procedure section 473, subdivision (b) based on mistake, inadvertence and excusable neglect, on the basis that counsel's failure to discover that the dismissal applied to her case was caused by the facial limitations of the Request for Dismissal, the mutual oversight of both counsel regarding a checkbox, the appearance of active litigation and extraordinary personal circumstances.

Procedural Deficiencies

At the

outset, the Court observes that Valenzuela's memorandum of points and authorities is 17 pages long, which is in contravention of California Rules of Court rule 3.1113, subdivision (d) (i.e., "[e]xcept in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages"). The court admonishes counsel for Valenzuela.

Merits

Valenzuela

and her counsel, Benjamin Arsenian (“Arsenian”) represent, and/or the accompanying exhibits reflect, inter alia, that Petrosian initially and briefly represented Valenzuela in connection with potential claims arising from the underlying motor vehicle accident (Valenzuela Decl., ¶ 18); that, prior to the filing of any complaint on Valenzuela’s behalf, Valenzuela retained the Law Offices of Benjamin Arsenian PC to replace Petrosian as her counsel (Id.); that this substitution of counsel occurred before either her complaint or the complaint by Morales was filed (Id.); that, from the date of substitution forward, Petrosian had no attorney-client relationship with Valenzuela and no authority to act on her behalf and she was represented exclusively by the Law Offices of Benjamin Arsenian PC (Id., ¶ 20); that Valenzuela’s complaint was filed by the Law Offices of Benjamin Arsenian PC on or about December 12, 2023 and assigned Case No. 23PSCV03846 (Id., ¶ 21; Arsenian Decl., ¶ 6, Exh. A); that Morales’s complaint was separately filed by Petrosian in connection with potential claims arising from the underlying motor vehicle accident (Valenzuela Decl., ¶ 22; Arsenian Decl., ¶ 7); that, while the Court consolidated Valenzuela’s and Petrosian’s cases for administrative efficiency and case management purposes, the cases remained separate actions with separate counsel and Valenzuela retained independent authority over the prosecution and disposition of her own claims (Valenzuela Decl., ¶¶ 23 and 24; Arsenian Decl., ¶¶ 9 and 10, Exh. B); that on or about March 18, 2025, Petrosian filed a Judicial Council Form CIV-110 Request for Dismissal, which identified Petrosian as acting “on behalf of Andrew Morales” on the signature line and listed Morales’s case number, not Valenzuela’s case number, but contained a small, checked box indicating dismissal of the “entire action of all parties and all causes of action” (Arsenian Decl., ¶¶ 11, 12 and 14, Exh. C) and that Valenzuela did not authorize or consent to any dismissal of her complaint and did not request dismissal of her case (Valenzuela Decl., ¶ 25).

Although

Cuevas and FBD oppose the motion, they fail to provide the Court with any declarations or documentary evidence contradicting any of the representations set forth above.

Under

the circumstances, then, it is clear that Petrosian had no authority to dismiss Valenzuela’s complaint on March 18, 2025, as he was not her counsel. As Valenzuela points out, there is no six-month time limitation applicable to unauthorized dismissals. “[D]ismissal of a cause of action by an attorney acting without

any authority from his client is an act beyond the scope of his authority which, on proper proof, may be vacated at any time.” (Whittier Union High Sc. Dist. v. Superior Court (1977) 66 Cal.App.3d 504, 509.) In this case, there was no existing attorney-client relationship existing at the time of dismissal in the first instance.

The
motion is granted. The Court orders
Case No. 23PSCV03846 restored to its active case list.